

		credited.” (<i>Monster Energy Co. v. Schechter</i> (2019) 7 Cal.5th 781, 791.) “[A] plaintiff’s burden at the second anti-SLAPP step is a low one, requiring only a showing that a cause of action has at least minimal merit within the meaning of the anti-SLAPP statute.” (<i>Id.</i>, at p. 793.) The court does not “weigh credibility [nor]compare the weight of the evidence. Rather, [the court] accept[s] as true the evidence favorable to the plaintiff and evaluate[s] the defendant’s evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law.” (<i>Id.</i> at pp. 791-792.)
11	Golpa v. Daimler AG 2019-01096618 Motion for terminating sanctions, issue and or Evidence Sanctions	Defendants’ Motion for Sanctions is DENIED. On 4/14/25, this Court ordered the parties to conduct the Airbag Control Unit (ACU) inspection pursuant to specific terms within 30 days. Defendant seeks terminating, evidentiary, and/or monetary sanctions against Plaintiff for failure to preserve and produce the ACU. <u>Legal Standard:</u> Code of Civil Procedure section 2023.030 provides in part as follows: “To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: (a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also

	impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses. (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (d) The court may impose a terminating sanction..." "Sanctions are intended to secure compliance with court orders, not to punish parties. Courts possess inherent power to issue a terminating sanction for pervasive and consistent misconduct. A terminating sanction in the first instance is permitted only in cases involving a willful violation, preceded by a history of abuse, and where no lesser alternative would produce compliance with the order. The issuance of a terminating sanction should not be made lightly." (<i>Gerard v. Cuevas</i> (2025) 118 Cal.App.5th Supp. 37.) "[T]erminating sanctions are appropriate only if a party's failure to obey a court order actually prejudiced the opposing party." (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 11.) Terminating sanctions should be imposed only after incremental lesser sanctions have been imposed and they cannot be imposed for punitive reasons. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992; Code Civ. Proc. §§ 2023.010, 2023.030.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial Court is justified in imposing the ultimate sanction." (<i>Id.</i> at p. 992, footnote omitted.) <i>Doppes v. Bentley Motors, Inc., supra</i>, 174 Cal.App.4th at 992, further explains, "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment. The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery
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	process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial Court is justified in imposing the ultimate sanction.”) “Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. Because discovery sanctions are not designed to punish, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct.” (<i>Kwan Software Engineering, Inc. v. Hennings</i> (2020) 58 Cal.App.5th 57, 74.) <u>Application:</u> Plaintiff concedes that his counsel lost the ACU. Defendant argues Plaintiff’s counsel was evasive about whether and how the ACU went missing. Defendant contends the ACU would likely reflect an airbag fault code prior to the collision, which would have given Plaintiff the opportunity to fix the issue. Therefore, Defendant argues the Court should make adverse findings related to Plaintiff’s negligence for failure to seek repairs based on a fault code notification. Plaintiff’s counsel presents extensive evidence demonstrating that the loss of the ACU was inadvertent and that Plaintiff’s counsel had diligently searched for the ACU to no avail. Plaintiff presents an expert declaration stating that Plaintiff can show the design of the vehicle was flawed, which would likely cause the airbag’s failure to deploy even without a fault code. Discovery sanctions are intended to ensure compliance with discovery obligations, proportionately remedy failures to comply with discovery, and not to put a party in a better position than if the discovery had been obtained. Here, Defendant has been prevented from determining whether Plaintiff shares responsibility for the airbag failure due to ignoring a warning light prior to the incident. Plaintiff argues this assertion is speculative, and Plaintiff last had the vehicle serviced by a dealership approximately three months before the accident. Moreover, the ACU was severely damaged and it is unknown whether any readout would have been possible.
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		The terminating, issue, or evidentiary sanctions proposed by Defendant ask the Court to assume the ACU would have provided evidence favorable to Defendant. The loss of evidence was likely due to the lack of diligence of Plaintiff's counsel or its storage vendor. However, based on the evidence before the Court at this stage, it remains speculative whether the ACU would have provided evidence more favorable to Plaintiff or Defendant. Defendant may make such arguments to the jury and/or request related jury instructions regarding loss of evidence. Defendant does not request monetary sanctions in the motion. Based on the foregoing, the sanctions requested in the motion go beyond the purpose of sanctions provided by the Code of Civil Procedure. Therefore, the motion is denied as to discovery sanctions without prejudice to Defendant's ability to seek relief via other means.
12	Uriarte v. Van Express, Inc. 2021-01221840 Motion to Vacate Judgment of Dismissal	Plaintiffs Richard Uriarte and Sylvia Uriarte's unopposed motion to vacate the Judgment of Dismissal dated November 10, 2025, is DENIED. Plaintiffs move for mandatory relief under Code of Civil Procedure section 473, subdivision (b) which provides, "whenever an application for relief is made <u>no more than six months</u> after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk ..., or (2) resulting default judgment or dismissal entered against his or her client . . ." [Emphasis added.] Here, the application for relief is untimely. The court ordered the Complaint dismissed on 10/7/25, but Plaintiff did not file the Motion to vacate until 4/21/25, more than six months after the dismissal. (ROA 224, 254) Although the request to vacate the Judgment of Dismissal ("Judgment") was timely filed within 6 months of the entry of the Judgment, it would be futile to set aside the Judgment. (See <i>Bowen v. Cowett</i> (1963) 216 Cal.App.2d 766, 771 ["Since setting aside the formal judgment entered March 13, 1959 would still leave the decisions of February 16, 1959 operative and invulnerable to Section 473 it would be futile to set aside said judgment. For that reason the judgment of dismissal of appellants' suit against respondent was proper."].) Plaintiffs to give notice.
13	Luna v. Hyundai motor America 2023-01339475	The Motion for Statutory Penalties by Plaintiffs Santiago Uriel Flores Luna and Jonathan Flores Lunais is DENIED. Plaintiffs seek penalties of \$50 per day for Defendant's failure to timely complete the vehicle repurchase pursuant to the